

3. 9:00 AM CASE NUMBER: C25-01093
CASE NAME: SHILOH PARKER VS. CHANNING HAWKINS
HEARING ON DEMURRER TO: FIRST AMENDED COMPLAINT
FILED BY: SAADA, JENDAYI
TENTATIVE RULING:

See LINE 1 above.

4. 9:00 AM CASE NUMBER: C25-01093
CASE NAME: SHILOH PARKER VS. CHANNING HAWKINS
*HEARING ON MOTION IN RE: PLAINTIFF'S FIRST AMENDED MOTION FOR LEAVE TO AMEND
COMPLAINT
FILED BY: PARKER, SHILOH A.
TENTATIVE RULING:

See LINE 1 above.

5. 9:00 AM CASE NUMBER: C25-01145
CASE NAME: COMMUNITY FUND 2, LLC, VS. VIKTORIYA VOLZHENINA
*HEARING ON MOTION IN RE: STRIKE PORTIONS OF PLAINTIFF'S 1ST AMENDED COMPLAINT
FILED BY: VOLZHENINA, VIKTORIYA
TENTATIVE RULING:

Denied as moot as Defendant's demurrer is SUSTAINED in full. See Line 6 below.

6. 9:00 AM CASE NUMBER: C25-01145
CASE NAME: COMMUNITY FUND 2, LLC, VS. VIKTORIYA VOLZHENINA
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: VOLZHENINA, VIKTORIYA
TENTATIVE RULING:

Background and Factual Allegations

Plaintiff owns real property located at 1532 Chanslor Avenue, Unit V, in Richmond, California ("Property"). (¶ 7.) The Property is subject to the CC&Rs of Defendant HOA. (¶ 8.) Defendant Volzhenina is the President of the Defendant HOA, as well as the owner of real property located at 1532 Chanslor Avenue, Unit N. (¶¶ 6, 9.) This unit is directly below Plaintiff's Property. (¶ 9.)

The Complaint alleges that while Plaintiff was attempting to sell the Property, Defendants made representations to third parties possibly interested in purchasing the Property that it had "squeaky floors" even though there was no obligation to disclose such information. (¶¶ 11-13.) Based on these allegations, Plaintiff asserts three causes of action: (1) breach of the recorded CC&Rs; (2) breach of fiduciary duty; and (3) intentional interference with contractual relations.

Standard for Demurrer